for remaining Operations and to deal with matters raised in accordance with any advice. The employer shall record the business of management with any advice. The employer either at the management meeting or after the management meeting and stated in writing to all who attended the meeting.

B. The employer may instruct the contractor to rectify defects and deficiency in its operations. Alternatively, the employer shall carry out the operation on its own and deduct the amount incurred in attending to such defaults from the next payment due to the operation . The deduction of such damages shall not relieve the contractor from its obligations to carry out the operations, or from any other of its obligations and liabilities under the contract.

2. **Notwithstanding anything stated above-** In case of default of service and if such event of default persist beyond one (1) day, the employer shall be entitled to invoke the security deposit and carryout the operations through a another contractor or departmentally. The Employer shall then proceed as per Tender conditions.

3. **Liquidated Damages and penalties for O/M works-**The basis for applying penalties is to restrict Contractor from deviating from disposing all raw/treated waste water efficiently from the service area, as per fixed schedule and as per stipulations in the tender.

A. The contractor is also expected to carry out the instructions of the Engineer or its representative from time to time, maintain the system in accordance with good Operating practices attend to customer complaints, refrain from offerings operations without due authorization where so required and follow other requirements under this Contract.

B. The Contractor shall be subject to the following liquidated damages and penalties for its failure to carry out its operations as indicated below.

C.

Basis of penalty	Penalty Benchmark	Penalty Value
Failure to maintain PH/BOD/COD/TSS/Fecal coli form within prescribed limits Detected as per reports of daily samples tested in lab by the Employer and outlet quality to be achieved as per Tender provisions	Up to 2 Occurrence/month	At least O&M charges of Failure day/days shall not be paid +5,000/-per Occurrence
	2 to 5 Occurrence/month	At least O&M charges of Failure day/days shall not be paid +10000/-per Occurrence
	5 to 10 Occurrence/month	At least O&M charges of Failure day/days shall not be paid +20000/-per Occurrence
	Above 10 Occurrence/month	**Termination**
	Samples tested by PCB/PCRI exceeding prescribed outlet parameters	25,000/- per Occurrence + O&M charges of Failure day/days shall not be paid

Executive Engineer
Uttarakhand Jal Sansthan
Pithuwala, Dehra Dun

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Non-operating any working Equipment/Drive more than 4 hours except the Equipment/Drive under maintenance	more than 4 hours	5000/-per Drive hour after permissible limit of 4 hours
Over Power Consumed The contractor has to guarantee the maximum Guaranteed Power Consumption For entire plant (When DG is used , the electricity consumption shall be determined as follows Electricity Consumption (KW hr)+1.10 times the Electricity Equivalent of Diesel Consumed (KWH)	for power increased beyond current base level based on Effluent Discharge Schedule on monthly basis	4.50/KW hr. of extra power consumed or @prevailing Tariffs applied by state electricity Authority whichever is higher
inappropriate de-silting of Sewers and clearing of silt in premises	Per Occurrence	5000 per Occurrence
Delay in recording of energy Meter Reading, Power failure time or Diesel Consumption	Per Occurrence	1000 per Occurrence
Duty Staff not wearing uniform or it being dirty.	Per Occurrence	100 per Occurrence
Minimum Maintenance time will be 15 Days for any maintenance activity which is not responsible for poor quality of treated sewage.	Every day after splayed time of 15 days	15000/- Per Day
Any Maintenance works which are related to quality of treated sewage have to do within 24 hour with prior information / permission of Engineer in Charge (Verbal, Telephonic or any fasted mode)	more than 24 hour	15000/- Per Hour

In event of any penalty imposed by any agency such as NGT or UPSEB or H'ble Court due to any default of operation in STP, that will be the sole responsibility of the firm and will be paid by the firm.

14. **Intellectual Property & confidential Information-** The parties agree that all details plans manuals documentation specifications schedules programs reports calculations and other work relating to the facilities and /or Systems and the provision of operations pursuant to this Contract (hereafter referred to as proprietary Material) which have been or are hereafter written originated or made by any of them or any of their respective employees sub-contractors or agents and by the persons related to the contractor in connection with this contract shall be owned by and be the property of the Employer the determination of information as proprietary Materials shall be made at the sole discretion of the Employer. The contractor shall have an irrevocable royalty-free non-exclusive license to use the proprietary material during the term of this contract for all purposes connected with fulfilling its obligations hereunder however this license under this contract such license shall not continue after the suspension or termination of this contract or the discharge by the contract of its duties hereunder .

KANWAR ENGINEERING
SUNAM (SANGRUR (PB.)

Executive Engineer
Uttarakhand Jal Sansthan
Pithuwala, Dehra Dun